

HEADNOTE

“1. An intended harmonization of the limitation period regime as such does not constitute grounds for extending the period that is running for a party in dispute to whom service could be successfully effected at an earlier point in time. Rather, harmonization can also be achieved by shortening the period that is running for the party in dispute to whom service was only effected at a later point in time.

2. Working with the new procedural law and the case management system (CMS) presents considerable challenges for all parties involved. Therefore, a practicable handling of the challenges that arise is required in the initial phase.”

COURT
Local Division in Munich

PROCEEDINGS
Procedural order

PATENT
EP3646825

A system comprising a prosthetic valve
and a delivery catheter

KEYWORDS

Time limit extension request

Alignment of time limits for co-parties

Time limit reduction

Discretion

Early-stage challenges

SUMMARY

The Local Division in Munich issued a procedural order. The patent at issue relates to a system comprising a prosthetic valve and a delivery catheter. According to the headnotes of the decision, harmonizing limitation periods across parties does not justify extending deadlines for a party who received service earlier, since harmonization can equally be achieved by shortening deadlines for parties served later. The court acknowledged that transitioning to the new procedural rules and case management system creates substantial practical difficulties for all involved parties and therefore requires a pragmatic approach during this initial implementation phase.